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Act, 1919.



CHAPTER lxiv.

An Act to confer further powers on the urban district council of Bedwellty with regard to the supply of electricity and gas and for other purposes.

A.D. 1919.

[15th August 1919.]

WHEREAS the urban district of Bedwellty in the county of Monmouth (in this Act referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Bedwellty (in this Act referred to as "the Council"):

And whereas the Rhymney Valley and General Electric Power Supply Company Limited (in this Act referred to as "the company") was formed in 1906 and is supplying electricity within the district and a portion of the urban district of Gelligaer and is authorised to supply electricity within the urban district of Mynyddislwyn under the powers granted to them by the Rhymney Valley and General Electric Supply Company's Order 1907:

And whereas by the agreement dated the twenty-sixth day of June one thousand nine hundred and nineteen of which a copy is set out in the First Schedule to this Act the Council in conjunction with the urban district councils of Gelligaer and Mynyddislwyn respectively have agreed subject to the sanction of Parliament to purchase the undertaking of the company in the manner therein mentioned at the price of nine thousand pounds and it is expedient that such agreement should be confirmed and that the undertaking of the company should be transferred to and vested in the Council and the said two councils in manner provided by this Act and that each of the

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A.D. 1919. said councils should respectively be authorised to supply electricity for all purposes within such part of the area now supplied by the company as is comprised in the district of such council subject however to the provisions herein contained:

And whereas it is expedient that further powers be conferred upon the Council with respect to the supply of gas and also to the discharge of moneys now due from them on revenue account:

And whereas by section 21 of the *Bedwellty Urban District Council Act 1912* (in this Act referred to as "the Act of 1912") it was provided that if the urban district council of *Mynyddislwyn* (in this Act referred to as "the *Mynyddislwyn Council*") promoted a Bill in Parliament authorising the *Mynyddislwyn Council* to supply gas the Council would sell to the *Mynyddislwyn Council* so much of the gas undertaking of the Council as was situate in the urban district of *Mynyddislwyn* and also provided that until the *Mynyddislwyn Council* have provided such gasworks as they think necessary for the supply of gas within such district the Council would supply to the *Mynyddislwyn Council* such quantity of gas in bulk as they may require at the price of three shillings per thousand cubic feet:

And whereas the *Mynyddislwyn Council* promoted a Bill in Parliament in the Session 1913 in order to empower the *Mynyddislwyn Council* to construct gasworks and supply gas and the Bill (which became an Act in the same session) authorised the construction of gasworks on a site therein specified and empowered the *Mynyddislwyn Council* to borrow money for that purpose:

And whereas the *Mynyddislwyn Council* have purchased the portion of the gas undertaking of the Council in their district but have not constructed the gasworks authorised by the *Mynyddislwyn Urban District Council Act 1913* (in this Act referred to as "the Act of 1913") and are taking a supply of gas in bulk from the Council under the provisions of section 21 of the Act of 1912 and of an agreement made under the Act of 1913 between the Council and the *Mynyddislwyn Council* and dated the sixteenth day of February one thousand nine hundred and fifteen:

And whereas owing to the continued rise in the price of labour and materials brought about by the recent war the cost

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of the manufacture of gas by the Council has risen to four shillings or thereabouts per thousand cubic feet and it is expedient that the price to be paid by the Mynyddislwyn Council under the Act of 1912 and the said agreement should be varied and other amendments of section 21 of the Act of 1912 be made as by this Act provided: A.D. 1919.

And whereas it is expedient that the other provisions of this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Bedwellty Urban District Council Act 1919* and this Act and the Act of 1912 shall be read together. Short title.

2. The Electric Lighting Acts 1882 to 1909 and the Electric Lighting (Clauses) Act 1899 (so far as the same are not inconsistent with the provisions of this Act) are hereby incorporated with this Act. Incorporation of Acts.

3. In this Act the several words and expressions to which meanings are assigned in the Acts incorporated in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

“The district” means the urban district of Bedwellty;

“The Council” means the urban district council of the district;

“The Gelligaer Council” means the urban district council of Gelligaer;

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- "The Mynyddislwyn Council" means the urban district council of Mynyddislwyn;
- "The company" means the Rhyymney Valley and General Electric Power Supply Company Limited;
- "The Bedwellty portion" means so much of the undertaking of the company as is within the district and agreed to be sold to the Council under the agreement set forth in the First Schedule to this Act;
- "The Gelligaer portion" means so much of the undertaking of the company as is within the urban district of Gelligaer and agreed to be sold to the Gelligaer Council under the said agreement;
- "The Mynyddislwyn portion" means so much of the undertaking of the company as is within the urban district of Mynyddislwyn and agreed to be sold to the Mynyddislwyn Council under the said agreement;
- "The date of transfer" means the thirtieth day of September one thousand nine hundred and nineteen or the last day of the quarter in which this Act shall be passed whichever shall be the later;
- "Coke-oven gas" means gas produced in coke-ovens which has or has not been purified;
- "The district fund" and "the general district rate" mean respectively the district fund and general district rate of the Council.

PART II.

TRANSFER OF UNDERTAKING.

Company to
sell their
undertaking.

4. The company shall sell to the Council and to the Gelligaer and Mynyddislwyn Councils respectively and those councils respectively shall purchase the undertaking of the company for the sum of nine thousand pounds in the manner and upon and subject to the terms and conditions contained in the agreement bearing date the twenty-sixth day of June one thousand nine hundred and nineteen as set forth in the First Schedule to this Act and the said agreement is hereby confirmed and made binding on the parties thereto and each of them respectively and the provisions thereof may and shall be carried into effect accordingly Provided that if this Act shall be passed into law on a date subsequent to the thirtieth day of September one thousand

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nine hundred and nineteen the said agreement shall be construed and have effect as if therein there were substituted for the words "the thirtieth day of September one thousand nine hundred and nineteen" the words "the last day of the quarter in which this Act was passed."

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5. The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase-money purporting to be signed by two of the directors of the company shall (unless it be proved that the purchase-money has not been paid) be conclusive evidence in all courts and proceedings of the transfer.

Proof of payment of purchase-money.

6. The receipt in writing of two directors of the company of whom the managing director (if any) shall be one for any money to be paid to the company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof.

Receipt for purchase-money.

7. Upon payment of the purchase-money the Bedwellty portion shall be by this Act transferred to and vested in the Council and any right or obligation of or on the company to supply electricity within any portion of the district shall cease and determine.

Vesting portion in Bedwellty Council.

8.—(1) Upon payment of the purchase price the Gelligaer portion shall be by this Act transferred to and vested in the Gelligaer Council and any right or obligation of or on the company to supply electricity within any portion of the Gelligaer Urban District shall cease and determine.

Vesting portion in Gelligaer Council.

(2) Upon the Gelligaer portion being transferred to and vested in the Gelligaer Council the same shall form part of the electricity undertaking of the Gelligaer Council and the Gelligaer (Bedlinog and Fochriw) Electric Lighting Order 1914 shall be amended so that the First Schedule thereto shall be read as if the words "The urban district of Gelligaer as constituted at the passing of the Bedwellty Urban District Council Act 1919" had been there inserted as the area of supply.

9. Upon payment of the purchase price the Mynyddislwyn portion shall be by this Act transferred to and vested in the

Vesting portion in

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A.D. 1919. Mynyddislwyn Council and any right or obligation of or on the company to supply electricity within any portion of the Mynyddislwyn Urban District shall cease and determine but the Mynyddislwyn Council shall not exercise the powers hereby transferred to and vested in them until they have been authorised to supply electricity by Provisional Order made by the Board of Trade and confirmed by Parliament or by any order of a Government department having the force of a Provisional Order so made and confirmed.

Restriction
on exercise
of powers.

10. Notwithstanding anything contained in this Act or in the Electric Lighting Acts 1882 to 1909 the councils shall not generate electrical energy or take a supply of electrical energy from any company or person other than the South Wales Electrical Power Distribution Company if and so long as that company are able and willing to supply electrical energy to them in bulk upon terms not less favourable than those upon which they supply electrical energy to other local authorities under similar circumstances or than those which may be fixed by any body of electricity commissioners constituted under any Act of Parliament whichever shall be the most favourable Provided that this provision shall not apply to the area comprised in the Gelligaer (Bedlinog and Fochriw) Electric Lighting Order 1914 :

In this section the councils mean the Council the Gelligaer Council and the Mynyddislwyn Council :

Provided that the Bedwellty Council may notwithstanding anything in this section contained take electricity from the Powell Duffryn Steam Coal Company Limited until the thirty-first day of August one thousand nine hundred and twenty-two but not afterwards under the existing agreement dated the first day of September one thousand nine hundred and fourteen between the company and that company.

Mortgages
and other
liabilities to
be defrayed
by company.

11. All mortgages secured upon or affecting any portion of the undertaking of the company comprised in the agreement set forth in the First Schedule to this Act and all trading and other debts and liabilities due from or payable by the company up to the date of transfer which at the date of transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the company and the company shall indemnify the Council and the Gelligaer and Mynyddislwyn Councils respectively against the same and if at the date of transfer any action arbitration or proceeding or any cause of action arbitration or

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proceeding is pending or existing against or in favour of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

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12. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the company and in force at the time of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the council whose district is affected by such contract or other instrument and may be enforced as fully and effectually as if instead of the company such council had been a party thereto and such council shall indemnify the company in respect thereof.

Contracts of company to be binding on Council.

13. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Council the Gelligaer Council and the Mynyddislwyn Council as the case may be.

Books to remain evidence.

14. The company shall supply to the Council and the Gelligaer and Mynyddislwyn Councils respectively an accurate plan of all mains belonging to them and situate in the district of the council in question and after the date of transfer the company shall be entitled to retain the directors' minute book and the register of shareholders and other books relating solely to the holders of shares in and to the constitution of the company and until the company shall be finally wound up and dissolved the company shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the company to the date of transfer and for all other purposes in relation to the winding up of the company.

Right of access of company to books.

PART III.

SUPPLY OF ELECTRICITY.

15. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of

Incorporation of Electric Lighting (Clauses) Act 1899.

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A.D. 1919. this Act Provided that nothing contained in section 3 of the said schedule shall be construed as preventing the Council from taking a supply of energy in bulk from any company or person who may lawfully give such a supply.

Undertakers. **16.** The undertakers within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are for the purposes of this Part of this Act the Council.

Area of supply. **17.** The area of supply for the purposes of this Part of this Act and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the Second Schedule to this Act and is more particularly delineated on the map deposited together with this Act at the Board of Trade by the Council and signed by an assistant secretary to the Board of Trade.

Maximum prices. **18.** The maximum prices which may be charged by the Council as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Act.

Power to use lands and buildings. **19.** The Council may use any lands or buildings belonging to or acquired by them for the purposes of the Bedwellty portion and may thereon or therein maintain and use a transformer station or stations with all such plant and machinery as may be necessary or suitable for transforming electricity.

Purchase of electricity in bulk. **20.** The Council may enter into and carry into effect agreements with the South Wales Electrical Power Distribution Company or any company body or person authorised to give the same for the supply of electrical energy in bulk by the South Wales Electrical Power Distribution Company or such other company body or person aforesaid to the Council and the Council may take and use such supply for the purposes of their undertaking.

Supply of electricity to premises having supply of gas or other illuminant. **21.** Notwithstanding anything contained in the Electric Lighting Acts 1882 to 1909 a person shall not be entitled to demand or to continue to receive from the Council a supply of electrical energy for any premises having a supply of gas or other illuminant unless he has agreed with the Council to pay them such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum

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demand for those premises and the sum to be so paid shall be A.D. 1919.
determined in default of agreement by arbitration.

22.—(1) The Council shall so soon as the annual statement of accounts of the undertaking transferred under this Act has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulated in the urban district a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the Council at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882. Revision of prices.

(2) The Council shall on the expiration of the fifth complete financial year after they have commenced to supply electrical energy under this Act and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under this Act so that so far as is reasonably practicable no rate will be required for the purpose of defraying the future expenses of the said undertaking during the next three years Provided nevertheless that—

(a) The prices to be charged shall not exceed the maximum prices which may be charged under this Act :

(b) The scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the Council.

(3) Nothing in this section contained shall prevent the Council from entering into contracts for periods which may extend beyond the periods at which any revision may take place under the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

(a) Be subject to revision at the next triennial revision provided for in this section; or

(b) Vary in the same proportion as the prices charged to ordinary consumers :

Provided that the Council shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract.

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(4) There shall not be made against the district rate or any other rate for energy used by the Council for street lighting or any other purpose a charge at a higher price than that charged to consumers using energy for similar purposes and for the like hours of supply.

PART IV.

SUPPLY OF GAS.

Supply of
coke-oven
gas.

23.—(1) The Council and any local authority company or person may enter into and carry into effect contracts and agreements for and in relation to the supply by such local authority company or person to the Council of coke-oven gas.

(2) The Council may use coke-oven gas for the purposes of their undertaking and may supply the same to consumers under and subject to the provisions of the Act of 1912 and this Act.

Power to lay
mains.

24. For the purposes of this Part of this Act the Council may lay down erect place repair alter renew and remove mains pipes culverts and works and conveniences within the gas limits and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall with the necessary alterations extend and apply to and for the purposes of this section.

Testing
place.

25. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing place shall be a testing place which shall be provided by the Council within three months after the passing of this Act on any of the lands described in the Third Schedule to the Act of 1912.

Testing for
calorific
power.

26.—(1) Within six months from the passing of this Act the Council shall provide and maintain at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them at such testing place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas.

(2) The gas supplied by the Council shall be tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees and shall be of a calorific power of five hundred British thermal units and that power is in this Act referred to as "the standard calorific power."

(3) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for illuminating power

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shall cease to apply to the Council and sections 28 to 33 of that Act shall in their application to the Council be construed as if calorific power were therein mentioned in lieu of illuminating power. A.D. 1919.

27.—(1) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day. Provision as to testing for calorific power.

(2) The gas examiner shall forthwith deliver a report of the result of his testing to the Council and that report shall be receivable in evidence.

28. If on any testing the calorific power of the gas supplied by the Council is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):— Penalties for deficient calorific power.

If the deficiency does not exceed fourteen British thermal units a sum not exceeding forty shillings:

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

29.—(1) All gas supplied by the Council to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Council shall afford the examiner all reasonable facilities for making the test.

30. No penalty shall be incurred by the Council for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is Saving as to penalties.

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Power to
Board of
Trade to vary
standard
calorific
power:

31. If after the expiration of five years from the passing of this Act application is made to the Board of Trade by the Council or by any body or person who may appear to the Board of Trade to have a substantial interest in the matter to reduce or increase the standard calorific power or the pressure prescribed by this Act the Board of Trade after hearing the parties and any other persons who appear to the Board to be interested may make such reduction or increase of the standard calorific power or of the prescribed pressure as they think fit.

Modification
of terms of
supply to
Mynyddis-
lwyn
Council.

32. Notwithstanding anything contained in section 21 (Power to Mynyddislwyn Council to purchase part of gas undertaking) of the Act of 1912 and section 4 (Transfer of northern gas undertaking) of the Act of 1913 or any agreement made under the provisions of the Act of 1912—

(a) Subsection (4) of section 21 of the Act of 1912 shall be read and have effect as if the words “or such other means for obtaining a supply” were inserted therein after the word “manufacture”:

(b) The price to be paid by the Mynyddislwyn Council to the Council shall as from the thirtieth day of September one thousand nine hundred and nineteen be the average cost to the Council of all gas made or bought by the Council which price failing agreement shall be determined by arbitration in accordance with the provisions of section 21 of the Act of 1912:

(c) At any time after the expiration of five years from the passing of this Act either the Council or the Mynyddislwyn Council may on giving six months notice in writing to the other determine the obligation on the part of the Council to give and on the part of the Mynyddislwyn Council to take a supply of gas under the provisions of the aforesaid section 21.

For protec-
tion of
railway
companies.

33.—(1) In executing and maintaining the works authorised by the Act of 1912 and this Act where the same cross or will cross over or under or otherwise affect any railway or any part of the works or property of the Great Western Railway Company the London and North Western Railway Company and the Brecon and Merthyr Tydfil Junction Railway Company (hereinafter

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respectively referred to as "the railway company") the Council shall (except so far as it may be otherwise agreed between the railway company and the Council) be subject to the following conditions:—

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- (a) All such works shall be executed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the railway company and (except in case of emergency) according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Council of his objection thereto he shall be deemed to have approved thereof:
- (b) If within fourteen days after the receipt of any such plans and drawings the railway company give to the Council notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Council) which will cross over or under any railway or work belonging to them the railway company may themselves execute such part of the work under the superintendence and to the reasonable satisfaction of the engineer of the Council and recover the reasonable costs thereof from the Council:
- (c) All works which the Council may execute under this subsection shall so far as reasonably practicable be so constructed as to cause no injury to the railway works and property of the railway company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railways works and property or to the railway company's servants or workmen or to the public using the railway or any interruption or damage be caused to the traffic the Council shall make full compensation to the railway company in respect of such injury or interruption the amount of

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such compensation unless agreed upon to be determined by arbitration as hereinafter provided:

(d) The Council shall bear and on demand pay to the railway company the reasonable expense of the employment by the railway company during the execution of any work of laying renewing or repairing any mains which affects their railways of a sufficient number of inspectors watchmen and signalmen to be appointed by the railway company for watching and signalling the same with reference to and during the execution of such work of the Council and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors.

(2) Any additional expense which the railway company may reasonably and properly incur in maintaining their bridges and works by reason of the existence of any mains or pipes of the Council laid under the powers of this Act across over or under such bridges or works shall be paid by the Council to the railway company.

(3) Any dispute or difference which may arise between the railway company and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the railway company or the Council and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

PART V.

FINANCIAL.

Power to
borrow.

34. The Council may independently of any other borrowing power borrow at interest for the purposes of this Act (that is to say):—

(a) For the purchase of the Bedwellty portion and for defraying the costs and expenses incident to such purchase (other than the costs of this Act) such sum or sums as may be necessary:

(b) For repaying the balance due at the passing of this Act A.D. 1919.
on the gas capital account of the Council the sum of
four thousand two hundred and thirty-three pounds
seventeen shillings and one penny :

(c) For paying the costs and expenses of this Act the sum
requisite for that purpose :

And in order to secure the repayment of the moneys borrowed
under this section and the payment of the interest thereon the
Council may mortgage or charge as regards purposes (a) and (c)
in this section mentioned the revenue of their electricity under-
taking and as regards purpose (b) in this section mentioned the
revenue of their gas undertaking and also for any of the
purposes in this section mentioned the district fund and general
district rate.

35. The Council shall pay off all moneys borrowed by them Period for
repayment
of moneys
borrowed.
under this Act within the following periods :—

As to moneys borrowed for the purpose (a) mentioned in
the section of this Act the marginal note of which is
“Power to borrow” within thirty years from the date of
borrowing the same :

As to moneys borrowed for the purpose (b) in the said
section mentioned within ten years from the date of
borrowing the same :

As to moneys borrowed for the purpose (c) in the said
section mentioned within five years from the date of the
passing of this Act.

36.—(1) The Council may if they think fit in lieu of Power to
levy consoli-
dated rate.
themselves making assessing and levying any general district
rate order such rate to be made assessed and levied in the same
manner as the poor rate and may enforce the payment thereof
from the overseers in the same manner as in the case of a
contribution required by the Council from the poor rate and if
any such order be made by the Council the general district rate
shall be made assessed and levied by the overseers in the same
manner and under the same provisions (including the provisions
as to appeals) as in the case of the poor rate but subject to
exemptions (partial or otherwise) for the time being applicable
to such general district rate in respect of any property in the

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A.D. 1919. district and such rate may be assessed and levied either separately or together with the poor rate assessed and levied in respect of the hereditaments rateable to such rate.

(2) In the event of the Council making any order in pursuance of this section—

(a) Any other rate for the time being leviable by the Council and any water rate rent or charge and any charge for gas or electricity payable to the Council may be included with the poor rate (but distinguished therefrom) in any books of assessment and one demand note. The demand note shall be in such form as the Local Government Board may approve :

(b) The overseers shall recover and enforce the poor rate in the same manner as the general district rate is recoverable and enforceable under the Public Health Act 1875 and the provisions of section 2 (In default of distress for non-payment of rates justices may issue warrant of commitment) of the Distress for Rates Act 1849 with respect to the recovery and enforcement of the poor rate shall cease to apply. Provided that any provisions limiting the period within which proceedings must be commenced for the recovery of the general district rate in a court of summary jurisdiction shall not apply to the poor rate :

(c) Within the first financial year after the making of such an order the Council may notwithstanding anything to the contrary contained in the Waterworks Clauses Act 1847 alter and adjust the dates for the payment and recovery of water rates to correspond as nearly as practicable with the dates and periods for the levying and collection of the poor rate and for the purpose of bringing into operation such adjustment it shall be lawful for the Council to demand and recover water rates for two quarters of such financial year at the same time as the poor rate may be demanded and recovered and thereafter to demand water rates by two quarterly instalments in advance on the twenty-fifth day of March and the twenty-ninth day of September in each year but so that the

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same shall not be recoverable until the expiration of A.D. 1919.
three months from the said twenty-fifth day of March
and twenty-ninth day of September respectively.

(3) The expenses of the overseers in connection with the assessment and collection of the general district rate shall be paid out of the district fund.

37. The following provisions of the Act of 1912 are incorporated with this Act and shall extend and apply to the Council and also so far as relates to moneys borrowed under this Act to the Gelligaer Council as if those sections with any necessary modifications were set out in this Act (namely):—

Application
of parts of
Act of 1912.

Section 112 (Certain provisions of Public Health Act not to apply);

Section 113 (Mode of raising money);

Section 114 (Provisions as to mortgages);

Section 115 (Appointment of receiver);

Section 116 (Protection of lenders from inquiry);

Section 118 (Mode of payment off of borrowed money);

Section 119 (Sinking fund);

Section 122 (Power to reborrow);

Section 124 (Council not to regard trusts or bound to see to application of moneys);

Section 125 (Return respecting sinking fund to Local Government Board);

Section 126 (Expenses of executing Act);

Section 128 (Application of money borrowed).

38.—(1) The Gelligaer Council may independently of any other borrowing power borrow at interest—

Power for
Gelligaer
Council to
borrow.

(a) For the purchase of the Gelligaer portion and for defraying the costs and expenses incident to such purchase (other than any payment to be made by them towards the costs of this Act) such sum or sums as may be necessary:

(b) For paying any sum to be paid by them towards the costs of this Act the sum requisite for that purpose:

And in order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the

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A.D. 1919. — Gelligaer Council may mortgage or charge the revenues of their electricity undertaking and their district fund and general district rate.

(2) The Gelligaer Council shall pay off all moneys borrowed by them under this Act within the following period:—

(a) As to the moneys borrowed for purpose (a) above mentioned within thirty years from the date of borrowing the same:

(b) As to the moneys borrowed for purpose (b) above mentioned within five years from the date of the passing of this Act.

Crown
rights.

39. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

40. The costs charges and expenses of obtaining this Act shall after taxation be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council in pursuance of this Act.

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The SCHEDULES referred to in the foregoing Act. A.D. 1919.

THE FIRST SCHEDULE.

AN AGREEMENT made the twenty-sixth day of June one thousand nine hundred and nineteen between the RHYMNEY VALLEY AND GENERAL ELECTRIC SUPPLY COMPANY LIMITED (hereinafter called "the vendors") of the first part the URBAN DISTRICT COUNCIL OF BEDWELLY in the county of Monmouth (hereinafter called "the Bedwellty Council") of the second part the URBAN DISTRICT COUNCIL OF GELLIGAER in the county of Glamorgan (hereinafter called "the Gelligaer Council") of the third part and the URBAN DISTRICT COUNCIL OF MYNYDDISLWYN (hereinafter called "the Mynyddislwyn Council") of the fourth part.

WHEREAS by the Rhymney Valley and General Electric Supply Company's Order 1907 (scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 5) Act 1907) the vendors were empowered to supply electrical energy within the area set out in the schedule thereto and comprising the present urban districts of Bedwellty Gelligaer and Mynyddislwyn :

And whereas by the Gelligaer (Bedlinog and Fochriw) Electric Lighting Order 1914 (scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1914) the Gelligaer Council were authorised to supply electrical energy within a portion of their district as therein defined :

And whereas the vendors have laid down and constructed mains and other works for the supply of electrical energy within the district of the Bedwellty Council and are now distributing within such district electrical energy supplied to them in bulk by the Powell Duffryn Steam Coal Company Limited under the terms of an agreement dated the first day of September one thousand nine hundred and fourteen :

And whereas the vendors have laid down and constructed a separate system of mains and other works for the supply of electrical energy within a portion of the district of the Gelligaer Council and are now distributing within such portion of the district electrical energy supplied to them in bulk by the South Wales Electrical Power Distribution Company under the terms of an agreement dated the eighth day of April one thousand nine hundred and eleven :

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And whereas the vendors have agreed with the several councils parties hereto for the sale and transfer to them of the several portions of their undertaking situate in or relating to the districts of such councils in the manner and subject to the conditions hereinafter set forth :

And whereas the Bedwellty Council are promoting in the present session of Parliament a Bill for an Act (inter alia) to confirm and give effect to this agreement and to transfer to and vest in the several councils parties hereto the portions of the undertaking so agreed to be sold and transferred to them respectively and the powers rights and obligations of the vendors as undertakers under the said Order of 1907 with respect to the districts of such councils respectively :

Now this indenture witnesseth as follows :—

1. The vendors agree to sell to the Bedwellty Council and the Bedwellty Council agree to purchase from the vendors free from all incumbrances firstly all lands buildings sub-stations materials works and plant of the vendors situate within the district of the Bedwellty Council secondly the benefit in so far and to the extent that the vendors can assign same of the hereinbefore mentioned agreement with the Powell Duffryn Steam Coal Company Limited dated the first day of September one thousand nine hundred and fourteen and thirdly the rights and powers of the vendors in relation to such district as undertakers under the said Order of 1907 at the price of £3,017.

2. The vendors agree to sell to the Gelligaer Council and the Gelligaer Council agree to purchase from the vendors free from all incumbrances firstly all lands buildings sub-stations works materials and plant of the vendors situate within the district of the Gelligaer Council secondly the benefit so far as the vendors can transfer same of the hereinbefore mentioned agreement with the South Wales Electrical Power Distribution Company dated the ninth day of April one thousand nine hundred and eleven and thirdly the rights and powers of the vendors in relation to the last-mentioned district as undertakers under the said Order of 1907 at the price of £5,783.

3. The vendors agree to sell to the Mynyddislwyn Council and the Mynyddislwyn Council agree to purchase from the vendors free from incumbrances firstly all lands buildings sub-stations works materials and plant (if any) of the vendors situate within the district of the Mynyddislwyn Council and secondly the rights and powers of the vendors in relation to the last-mentioned district as undertakers under the said Order of 1907 at the price of £200.

4. Any sums reasonably expended by the vendors on the undertaking on capital account after the first of June one thousand nine hundred and nineteen shall be added to the purchase price and paid

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by the council in whose district the expenditure was made or if of general character then by all the councils proportionately to their share of the fixed purchase price and in the event of any dispute arising under this clause the same shall be referred to arbitration as hereinafter provided. A.D. 1919.

5. The Bedwellty Council agree with the vendors and as a separate agreement with each of the other councils parties hereto that the Bedwellty Council will use their best endeavours to obtain the passing in their said Bill of provisions—

- (a) Confirming this agreement and authorising the several parties hereto to carry the same into effect ; .
- (b) Transferring to and vesting in the several councils parties hereto the rights and powers of the vendors as undertakers under the said Order of 1907 in relation to the districts of such councils respectively ; and
- (c) Empowering the said councils to borrow under the provisions of the Electric Lighting Acts such sums as may be necessary for the purposes of this agreement The said provisions shall be in such form as the vendors and the several councils parties hereto shall reasonably require and approve and if any alteration shall be made in any of the said provisions to which any of the parties hereto affected thereby reasonably object the Bedwellty Council will withdraw the said provisions from their Bill.

6. The vendors shall until the actual completion of the sales to the respective councils carry on and manage the several portions of their undertaking according to their usual course of business and shall uphold maintain and keep the works and property and deliver up the same to the respective purchasers thereof in such good working order and condition as heretofore and shall continue to keep proper accounts Provided always that the vendors shall in the course of such management comply with the reasonable requirements as to the several portions of their undertaking of the respective purchasers thereof and any capital expenditure reasonably incurred by the vendors after the first day of June one thousand nine hundred and nineteen upon mains or works in the district of any one of the said councils which shall have been incurred with the consent of such council or (if such consent is refused) with the approval of an arbitrator appointed as hereinafter provided or in compliance with a binding requisition made under the company's Order of 1907 shall on the completion of the purchase by such council be repaid by such council to the vendors as an addition to the purchase-money.

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7. The vendors shall on completion hand over all books deeds agreements counsel's and engineer's opinions and reports plans descriptions of works vouchers letters and documents relating to any part of the property hereby agreed to be sold or to the business of the vendors to the council by whom such part is purchased or if the same relate to the whole of such property or any parts thereof agreed to be sold to more than one council to such of the councils parties hereto subject to such obligations as to production thereof to any other of the said councils as shall be agreed between such councils or failing agreement determined by arbitration between such councils. Provided always that until the vendors shall be finally wound up and dissolved the vendors and their liquidator or liquidators shall have full access at all reasonable times to the registers documents books and accounts including copies thereof when required by and at the expense of the vendors or their liquidator relative to their undertaking handed over to any of the said councils for the purpose of making up their accounts and for all other reasonable purposes in relation to the winding up of the vendors.

8. The purchase hereby agreed to be made by each council party hereto shall be completed on the thirtieth day of September one thousand nine hundred and nineteen. Upon the completion of such purchase the vendors shall at the expense of the respective councils execute and do all such assurances acts and things as may be reasonably required by the respective purchasers for vesting in them the property hereby agreed to be sold and transferred and giving to them the full benefit of these presents. Provided always that the vendors shall not be bound to complete the sale to any council except concurrently with the sales to the other councils.

9. The vendors shall be entitled to collect all rents and charges and other sums due to them and shall pay all outgoings in respect of their undertaking in the district of each council up to the date hereby fixed for completion of the purchase from such council and on completion any necessary adjustments shall be made. Each district council shall after the said date for completion collect all rents and charges and other sums which may have accrued due up to but not been discharged before and all rents charges and other sums which may become due after that date in respect of the portion of the vendors undertaking in the district of such council but all such rents and charges and other sums shall where necessary be apportioned and the same or so much thereof as is attributable to any period before the said date for completion shall forthwith after the collection of the same be paid over by such district council to the vendors.

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10. If from any cause other than the default of the vendors the purchase by any council party hereto shall not be completed by the date hereby fixed for the completion thereof such council shall pay to the vendors interest at the rate of five per cent. per annum on the purchase-money payable by such council from the said date until the actual completion of the purchase but so that payment of this interest shall not relieve the purchasers from their absolute obligation to complete. A.D. 1919.

11. After the several purchases shall have been completed the vendors shall continue to subsist only for the purpose of winding up their affairs and shall as soon as may be thereafter pass a resolution for the voluntary winding up of the vendors.

12. The vendors shall deduce a good and marketable title to the hereditaments comprised in the sale to each council and shall within twenty-eight days after the date of these presents furnish to such council a complete abstract of the title of the vendors to the hereditaments agreed to be sold to them and shall when required by such council produce to them or their agents the title deeds and other documents of title relating to the same.

13. The Gelligaer Council agree with the vendors that they the Gelligaer Council will take into their employ Herbert McNaul the resident engineer of the vendors on terms at least as favourable as those enjoyed by him on the date hereof and shall continue to employ him so long as he carries out the duties assigned to him with efficiency provided that the engagement may be terminated by either party upon giving three calendar months notice.

14. Each party shall pay their own expenses incurred in connection with this agreement and in carrying the same into effect Provided that if the Bedwellty Council shall obtain the passing in the present session of Parliament of an Act containing the provisions stated in clause 4 hereof in accordance with that clause the Gelligaer Council and the Mynyddislwyn Council respectively shall pay to the Bedwellty Council the respective sums of £250 and £25 towards the costs of the Bill for such Act.

15. If any question difference or dispute shall arise between the vendors and any of the councils parties hereto or between any one or more of such councils and any other or others of them with reference to this agreement or the construction thereof or as to anything to be done hereunder or as to the rights and liabilities of either party hereunder the same shall be referred to a single arbitrator failing agreement and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration.

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16. This agreement is subject to all such alterations as Parliament shall see fit to make therein but if any material alteration be made therein it shall be competent for any party hereto affected thereby to withdraw this agreement but in the event of the approval of Parliament to this agreement not being granted within the session 1919 this agreement shall be null and void.

In witness whereof the vendors and the said council have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Rhymney Valley and General Electric Supply Company Limited was hereunto affixed in the presence of

PERCY BAKER
L. ARNOLD WILLIAMS } Directors.
HERBERT D. W. LEWIS Secretary.

L.S.

The common seal of the Gelligaer Urban District Council was hereunto affixed in the presence of
FRANK T. JAMES Clerk.

L.S.

The common seal of the Bedwellty Urban District Council was hereunto affixed in the presence of
WILLIAM O'CONNOR Chairman.
T. J. THOMAS Clerk.

L.S.

The common seal of the Mynyddislwyn Urban District Council was hereunto affixed in the presence of
GEORGE CURTIS Chairman.
TREVOR C. GRIFFITHS Clerk.

L.S.

THE SECOND SCHEDULE.

AREA OF SUPPLY.

The urban district of Bedwellty as constituted at the commencement of this Act.

THE THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule the expression "unit" shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

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SECTION 1.

A.D. 1919.

Where the undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the undertakers under the Board of Trade regulations.

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